

9:00 A.M.

Calendar Lines # 1-4

Case Name Timed Out, LLC vs Liquid Restaurant and Lounge LLC

Case No. 24CV444939

Motion to Compel Further Responses to Form Interrogatories (Line # 1); Motion to Compel Further Responses to Special Interrogatories (Line #2); Motion to Compel Further Responses to Request for Production of Documents (Line #3); Motion for Admissions Deemed Admitted (Line #4); Sanctions

Before the court is Plaintiff Timed Out, LLC's ("Timed Out") motion to compel responses to the following discovery: further responses to Form Interrogatories ("FROG"); further responses to Special Interrogatories ("SPROG"); further responses to Request for Production of Documents ("RFPD"), Set One; and Motion for Sanctions against Defendant Liquid Restaurant and Lounge LLC's ("Liquid Restaurant"). On December 22, 2025, Plaintiff Timed Out filed this motion to compel further responses to **216 total discovery responses** as follows: 13 FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); 134 SPROGs (Nos. 1-134); and 69 RFPDs (Nos. 1-69).

Plaintiff Timed Out also filed a motion to compel further responses to Request for Admissions ("RFA"), Nos. 1-83 that is set for hearing on August 13, 2026. In total, Plaintiff seeks to compel ***299 further discovery responses*** for FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); SPROG (Nos. 1-134); RFPD (Nos. 1-69), and RFA (Nos. 1-83), Set One.

The Court has reviewed the plaintiff's moving papers filed on December 22, 2025; defendant Liquid Restaurant's Oppositions filed on July 2, 2026; and the plaintiff's Reply to defenses' oppositions filed on July 9, 2026 and September 9, 2026; as well as the pleadings. Defense filed another opposition on September 9, 2026, stating that the motion was moot, but the moving party has not withdrawn the motion.

On July 16, 2026, the parties appeared and the Court orders the parties to meet-and-confer and submit a joint statement no later than September 14, 2026, identifying the remaining items in dispute and why further responses should or should not be compelled. Additionally, the Court discussed having the matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1, parties were to meet and confer about private mediation or Rule 4 mediation. The court expressly noted, "Failure to comply with this order will result in consideration of sanctions."

No joint statement was filed in compliance with the Court order.

The parties are ORDERED to appear and discuss why the matter should not be taken off calendar and sanctions should not be imposed.

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Calendar Line # 5
Case Name Ramsin Nigjeh et al vs FCA US LLC
Case No. 25CV459495
Motion to Compel Initial Disclosures Under Code of Civil Procedure 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Ramsin Nigjeh (“Nigjeh”)’s July 9, 2022 purchase of 2022 Jeep Wrangler, vehicle identification number: 1C4JJXR69NW205757 (“Subject Vehicle”) that was manufactured and or distributed by Defendant FCA US LLC (“FCA”). (Complaint). On February 21, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) negligent repair; (6) fraudulent inducement concealment. (<i>Id.</i>). Defendant FCA filed an Answer on May 12, 2025. Before the Court is Plaintiff Nigjeh’s motion to compel Defendant FCA to comply with Code of Civil Procedure section 871.26 by producing documents required under subdivisions (h)(6)-(10), (12), and (13), and sanctions. Plaintiff filed this motion on January 9, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on defense counsel on that same day. On September 9, 2026, Plaintiff filed an opposition brief. The Court has carefully reviewed the following: Plaintiff’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Brena Rucker in support of the motion and attached Exhibits 1- 7; proof of service (totaling 88 pages); Defendant’s Opposition (totaling 6 pages); Declaration of Adam River in support of defense Opposition (totaling 4 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (h): The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins (“TSBs”) 1 for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle. (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.